

BEFORE THE FEDERAL MARITIME COMMISSION

Docket No.: 25-26

In the Matter of:

Roger Waterloo dba EcoBamboo – Complainant

v.

Ship4wd – Respondent

Date: October 15, 2025

COMPLAINANT’S REPLY TO RESPONDENT’S RESPONSE TO SECOND MOTION

Complainant submits this reply —not a motion— as response to ‘RESPONDENT’S REPLY TO COMPLAINANT’S RESPONSE TO RESPONDENT’S CROSS-MOTION TO DISMISS’ to clarify procedural obligations and address Respondent’s continued failure to comply with Commission rules.

I. Respondent’s Filing Does Not Constitute a Valid Answer

Under **§502.62(b)(2)(iii)**, Respondent was required to *“admit, deny, or explain each allegation.”* Respondent’s filing does none of these. **Instead, they file a Motion for Dismissal which offers no admissions, no denials, and no explanations—only a rhetorical posture that seeks to avoid engagement.** It states that Respondent “would contest” certain allegations if the matter proceeds. This is not a valid answer under Commission rules. It is a conditional hedge, not a responsive pleading.

Respondent has now failed to answer twice. Complainant submitted a violation matrix with 22 specific allegations, explained across a 68-page Complaint and supplemental filing. These allegations are supported by unrebutted written evidence—including communications from Respondent and its third-party contractors. The irony is that the allegation most central to the shipment’s collapse—the failure to secure proper fumigation and permitting—is the only allegation Respondent even gestures toward. Yet even here, it does not deny, explain, or rebut. It merely states that it “would contest” the allegation. That is not a defense. It is a hypothetical posture—a procedural placeholder. “Would contest” must be followed by explanation and evidence. Without it, the Administrative Law Judge (ALJ) is asked to trust Respondent’s word while disregarding documented, unrebutted evidence. That is not the standard.

In substance, Respondent's filing is dressed in legal language but lacks legal content. It cites unrelated cases, offers no exhibits, and avoids direct engagement with the allegations. It is not a responsive pleading—it is a rhetorical placeholder. The Commission's rules require more. Under **§502.65**, *"any allegation not answered shall be deemed admitted."* The Commission does not permit indefinite hedging or rhetorical delay. Procedural default is proper.

II. Dismissal Is Procedurally Invalid

Respondent's filing attempts to imply that dismissal is appropriate. But a motion to dismiss does not suspend the duty to answer.

Complainant acknowledges that under §502.70(b), a response to a dispositive motion—such as Respondent's motion to dismiss—is due within fifteen (15) days of service. Complainant does not dispute the timeliness of Respondent's October 6 filing **as a response to the first Motion for Default Determination, filed on September 26, 2025**, pursuant to §502.70(b). However, this acknowledgment does not alter Complainant's position—stated in the first motion for default determination—that Respondent's obligation to answer the Complaint was triggered upon service by Complainant on August 30, 2025, and that the 25-day answer period expired on September 24, 2025, under §502.62(b)(1).

The Commission's own directive—issued on October 1, 2024, during the shutdown—states: "Parties are expected to proceed with their cases to the extent possible, including conducting discovery and serving opposing parties with filings – including motions, briefs, and responses to requests for additional information – by the established deadlines."

Complainant served Respondent directly. Under §502.62(b)(1), the 25-day answer period begins upon service by "the Commission or the Complainant." Respondent has repeatedly ignored the second clause—"or the Complainant." If that clause were meaningless, it would not appear in the rule. If Respondent believes that service by the Complainant does not trigger the answer deadline, it must explain why the Commission included that language. It has not.

Respondent's posture is not just procedurally flawed—it is disrespectful to the framework laid out by the Commission. By refusing to answer and implying that it may do so only if the ALJ rules favorably, Respondent suggests it may waive Commission directives at will. This mirrors its earlier disregard for the clear directive of U.S. Customs and Border Protection (CBP) ([CEV-3 – June 18 email CBP](#)) that re-export was the only option. Such selective compliance undermines the integrity of the process and disrespects both Complainant and the Commission.

Respondent's obligation to answer was triggered. Silence from the ALJ does not toll the deadline. If Respondent believed its motion suspended its duty to answer, it should have sought a stay. It did not.

III. Mischaracterization of Complainant's Position and Misdefinition

Respondent misstates Complainant's position by suggesting that the communications were submitted to establish a "practice." Complainant made no such claim. The communications document the shipment process and its aftermath—to show where and by whom errors occurred. They are evidence of conduct, not a claim of systemic practice. Respondent's framing is a strawman.

Respondent also attempts to minimize the allegations by suggesting that a "one-time" issue is not actionable. This is incorrect. Under **§41102(c)**, a *violation* is any failure to establish, observe, or enforce just and reasonable practices. The Commission has consistently held that even isolated failures—if unjust or unreasonable—are actionable. A single act that breaches statutory obligations constitutes a violation.

The dictionary definition of "violation" is clear:

"The act of doing something that is not allowed by a law or rule." This definition does not require repetition, pattern, or intent. It requires only that a rule was broken.

If Respondent's definition were correct—that a violation must be repeated or systemic—then not only would the dictionary need to be rewritten, but every law that relies on the term "violation" would need to be reinterpreted. That is not the standard. That is not the law.

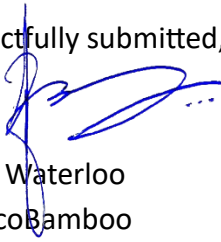
Under the Shipping Act, a violation refers to a breach of the regulations and practices established to ensure fair and reasonable handling of property by common carriers, marine terminal operators, and ocean transportation intermediaries (OTI). Violations include actions such as obtaining transportation at less than applicable rates, failing to establish and enforce just and reasonable regulations, or engaging in retaliatory conduct against shippers or intermediaries. The Federal Maritime Commission (FMC) enforces these provisions and may impose penalties for violations.

If Respondent's logic were accepted, every OTI could violate the Act once per customer without consequence. That is not the Commission's posture, and it is not the framework laid out in §41102(c).

IV. Request for Procedural Closure

Complainant does not request that Respondent's motion for dismissal be dismissed. Rather, Complainant submits that Respondent's failure to answer—now repeated—triggers procedural consequences under §502.65. Respondent has had multiple opportunities to comply and has chosen instead to file procedurally defective responses. Complainant respectfully requests that the ALJ treat the allegations as admitted and proceed accordingly. Further delay serves no legitimate purpose.

Respectfully submitted,



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